

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
April 2, 2026
8:30 AM/1:30 PM

3. FRANCES D'AGOSTINI V. ROBERT D'AGOSTINI

23FL1070

On January 20, 2026, Petitioner filed a Request for Order (RFO) seeking spousal support, attorney's fees, and orders regarding the payment of appraisal services. She filed a Memorandum of Points and Authorities and an Income and Expense Declaration concurrently therewith. On January 23rd, she filed a Declaration of Attorney in Support of RFO. All documents were served on January 26th.

Respondent filed and served his Responsive Declaration to Request for Order and his Income and Expense Declaration on March 18th.

Petitioner filed and served her Reply Declaration in Support of RFO on March 23rd.

Petitioner is requesting guideline temporary spousal support retroactive to December 22, 2023 based on a monthly income of \$102,189 for Respondent. She also requests attorney's fees in the amount of \$25,000 and an order for Respondent to pay appraisal costs subject to further allocation by the court. Finally, she asks that Respondent be ordered to reinstate Petitioner to her Board of Directors position for J&R Equipment Leasing.

Respondent opposes the requests and argues that his income is far less than the amount requested by Petitioner. Respondent asks that the court order the completion of the refinance with funds to be placed in an attorney trust account. He argues the funds may be used to pay for the appraisals and an agreed upon sum to be disbursed to each party for attorney fees and expenses. He further opposes the request for attorney's fees and the request to re-appoint Petitioner to the Board of Directors to J&R leasing.

Given that the parties are pending trial in just two months, the court is maintaining the current spousal support orders until the time of trial. It appears that spousal support is already an issue included in the trial, however, in an abundance of caution, the court is continuing the issue of spousal support to join with the trial commencing on June 1, 2026 at 8:30am in Department 5. The court reserves jurisdiction to award support back to December 22, 2023.

Regarding the appraisal fees, attorney's fees, and the refinance of the home, the parties are ordered to appear on these issues and to address why the home should not just be ordered sold at this juncture.

Finally, turning to the request to re-appoint Petitioner to the Board of Directors for J&R Leasing, Inc., if J&R Leasing is not a party to the action then the court does not believe

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it has jurisdiction to make such an order. It appears Petitioner's remedy would be in civil court.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #3: GIVEN THAT THE PARTIES ARE PENDING TRIAL IN JUST TWO MONTHS, THE COURT IS MAINTAINING THE CURRENT SPOUSAL SUPPORT ORDERS UNTIL THE TIME OF TRIAL. IT APPEARS THAT SPOUSAL SUPPORT IS ALREADY AN ISSUE INCLUDED IN THE TRAIL, HOWEVER, IN AN ABUNDANCE OF CAUTION, THE COURT IS CONTINUING THE ISSUE OF SPOUSAL SUPPORT TO JOIN WITH THE TRIAL COMMENCING ON JUNE 1, 2026 AT 8:30AM IN DEPARTMENT 5. THE COURT RESERVES JURISDICTION TO AWARD SUPPORT BACK TO DECEMBER 22, 2023.

REGARDING THE APPRAISAL FEES, ATTORNEY'S FEES, AND THE REFINANCE OF THE HOME, THE PARTIES ARE ORDERED TO APPEAR ON THESE ISSUES AND TO ADDRESS WHY THE HOME SHOULD NOT JUST BE ORDERED SOLD AT THIS JUNCTURE.

FINALLY, TURNING TO THE REQUEST TO RE-APPOINT PETITIONER TO THE BOARD OF DIRECTORS FOR J&R LEASING, INC., IF J&R LEASING IS NOT A PARTY TO THE ACTION THEN THE COURT DOES NOT BELIEVE IT HAS JURISDICTION TO MAKE SUCH AN ORDER. IT APPEARS PETITIONER'S REMEDY WOULD BE IN CIVIL COURT.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.